

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

GOHAR STEPANYAN,

Plaintiff,

v.

SOUTHERN CALIFORNIA PERMANENTE
MEDICAL GROUP, et al.,

Defendants.

Case No.: CIVSB2512786

**[TENTATIVE] ORDER DENYING
MOTION TO COMPEL
ARBITRATION FILED BY
DEFENDANT SOUTHERN
CALIFORNIA PERMANENTE
MEDICAL GROUP**

I. INTRODUCTION

On May 6, 2025, Plaintiff Gohar Stepanyan filed a complaint against Southern California Permanente Medical Group (Permanente), Kaiser Foundation Health Plan, Inc. (dismissed 09/23/2026), Kaiser Foundation Hospitals (dismissed 09/23/2026), and Lingli Cai, M.D. (dismissed 09/23/2026), alleging a single cause of action for medical negligence in connection with a hysterectomy and a delay in diagnosing Plaintiff's cancer.

Now before the Court is Permanente's motion to compel Plaintiff's claim to arbitration. Plaintiff opposes, arguing Permanente failed to establish a valid arbitration agreement and waived its right to arbitrate. Permanente replies. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

II. PRELIMINARY ISSUES

A. The FAA Applies

The evidence shows that the arbitration agreement is subject to the FAA. The arbitration agreement states that arbitration under the agreement shall be governed by the Federal Arbitration Act. (Adkins Decl. Exh. B, pp.60-61 [General Provisions].) Plaintiff does not dispute that the FAA governs.

B. An Agreement to Arbitrate the Claims at Issue Exists

Permanente meets its burden to show Plaintiff signed an arbitration agreement that covers Plaintiff's claim. With its motion, Permanente provides a copy of an Enrollment Application purportedly signed by Plaintiff that states:

I understand that, [] any claim that I, my heirs, or other claimants associated with me assert for alleged violation of any duty arising out of or related to membership in Health Plan, including any claim for medical or hospital malpractice, for premises liability or relating to the coverage for, or delivery of, services or items, irrespective of legal theory, must be decided by binding arbitration under California law and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. I agree to give up my right to a jury trial and accept the use of binding arbitration. I understand that the arbitration provision is contained in the Evidence of Coverage.

(Adkins Decl. Exh. A.) Plaintiff does not deny signing the agreement nor dispute that the agreement covers her claim. Plaintiff asserts Permanente cannot meet its burden without providing a direct witness to Plaintiff's signature. The Court disagrees. As stated above, Permanente only needed to provide an executed copy of the arbitration agreement. It did that. Plaintiff needed to submit evidence refuting her signature in the agreement. She did not do that.

Therefore, Permanente meets its burden to show the existence of an arbitration agreement between the parties and Plaintiff's argument fails to meet her shifted burden to "submit sufficient evidence to create a factual dispute and shift the burden back to [Permanente]." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

The arbitration agreement further states:

Any dispute shall be submitted to binding arbitration if all of the following requirements are met:

- The claim arises from or is related to any alleged violation of any duty incident to or arising out of or relating to this Evidence of Coverage or a Member Party's relationship to Kaiser Foundation Health Plan, Inc. ("Health Plan"), including any claim for medical or hospital malpractice (a claim that medical services or items were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered), for premises liability, or relating to the coverage for, or delivery of, services or items, irrespective of the legal theories upon which the claim is asserted.
- The claim is asserted by one or more Member Parties against one or more Kaiser Permanente Parties or by one or more Kaiser Permanente Parties against one or more Member Parties.

(Adkins Decl. Exh. B, p. 59 [scope of arbitration].) "Member Parties" includes a Member, a Member's heir, relative, or personal representative; and any person claiming a duty to them arises from a Member's relationship to one or more Kaiser Permanente Parties. "Kaiser Permanente Parties" includes ...Southern California Permanente Medical Group." (Adkins Decl. Exh. B, p. 59 [scope of arbitration].)

Given that Plaintiff's claim relates to her allegation that she did not receive appropriate medical care from Permanente, and the agreement covers claims for medical and hospital malpractice, the evidence shows that an arbitration agreement exists that covers Plaintiff's claim.

III. WAIVER OF RIGHT TO ARBITRATION

Plaintiff shows by clear and convincing evidence that Permanente waived its right to compel the arbitration of this dispute.

Plaintiff asserts that Permanente waived its right to compel arbitration by actively litigating this matter despite its knowledge of the arbitration agreement. Plaintiff argues Permanente has engaged in the following litigation conduct:

- On June 13, 2025, Permanente filed its answer containing an affirmative defense seeking arbitration;

- On June 14, 16, and 17, 2025, the parties corresponded regarding arbitration (Weiss Decl. Exh. 2);
- On June 18, 2025, Permanente filed a Demand for Jury, posted jury fees, and filed a Declaration of Trial Attorney;
- On July 22, 2025, Permanente served Form Interrogatories on Plaintiff (Weiss Decl. Exh. 6);
- On August 25, 2025, Permanente served responses to Form Interrogatories and Requests for Production (Weiss Decl. Exh. 7);
- On October 31, 2025, Permanente filed an Initial Trial Setting Conference Statement;
- On January 8, 2026, Permanente took Plaintiff's deposition (Weiss Decl. Exh. 10); and
- On January 15, 2026, Permanente served two sets of Requests for Production on Plaintiff (Weiss Decl. Exh. 6).

On reply, Permanente asserts it has not taken any actions that are inconsistent with its right to seek arbitration. Permanente argues the discovery it has taken is minimal, is permitted under the arbitration agreement, and that Permanente has not filed any motions nor sought any rulings from the Court on the merits of any issue. (Arshakyan Decl. ¶¶ 5-8.)

Permanente's position flies in the face of established California Supreme Court precedent. In *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 585 (*Quach*), the California Supreme Court held that "a party may, as a result of its litigation conduct, lose its right to compel arbitration." (*Id.* at p. 583.) A party waives its right to arbitration if it is shown by "clear and convincing evidence that the waiving party knew of the contract right and

intentionally relinquished or abandoned it.” (*Id.* at p. 584.) “[I]ntentional relinquishment or abandonment” is proven through evidence showing “conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party abandoned it.” (*Ibid.*) Finally, the “waiver inquiry is exclusively focused on the waiving party’s words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor the party’s subjective evaluation of the waiving party’s intent is relevant.” (*Id.* at p. 585.)

The situation in *Quach* bears a striking resemblance to the present dispute. The *Quach* Court found that despite the defendant raising arbitration in its answer, its failure to move to compel arbitration at the outset of the case and propounding written discovery suggested “it did not intend to seek arbitration.” (*Quach, supra*, 16 Cal.5th at p. 586.) The Court further found evidence of waiver because the defendant waited 13 months before filing its motion, took the plaintiff’s deposition, and did not check the box that it was willing to participate in arbitration and “affirmatively [stated] its preference for a jury trial” in its initial case management statement. (*Id.* at pp. 586-87.) The Court’s conclusion was “not undermined by [defendant’s] assertions that it did not move to compel arbitration on the ‘eve of trial,’ that the discovery it conducted was ‘minimal,’ that it did not gain any information about [the] case that it could not have gotten in arbitration, and that [plaintiff] has not litigated the merits of his claims.” (*Id.* at p. 587.)

On this record, the Court concluded that “being fully aware of its right to compel arbitration, [defendant] chose not to do so for 13 months, affirmatively indicated its intent to pursue a jury trial rather than arbitration, and actively engaged in discovery — words and

conduct markedly inconsistent with an intent to arbitrate. Accordingly, we conclude [defendant] waived its right to arbitrate the dispute.” (*Ibid.*)

Permanente’s conduct here is essentially the same as that which constituted a waiver under *Quach* and is inconsistent with an intent to arbitrate. Permanente filed its answer (June 13, 2025) asserting its right to arbitration and then waited over 11 months to bring a motion seeking arbitration (May 22, 2026). Before filing the motion, Permanente: (1) filed a Demand for a Jury Trial, (2) paid jury fees; (3) filed a Declaration of Trial Attorney asking the Court to “make a finding or enter an order” to allow the trailing or continuance of the trial should lead counsel be engaged in trial; (4) propounded and responded to written discovery (5); took Plaintiff’s deposition; (6) filed an Initial Trial Setting Conference Statement agreeing to private mediation, stating it would complete discovery within one year, and requesting a late 2026 trial date; and (7) obtained a December 7, 2026, mediation completion deadline and a January 11, 2027, trial date.

Permanente's extensive litigation conduct provides clear and convincing evidence of an intent to abandon its right to arbitrate. Therefore, the Court DENIES Permanente’s motion because it has waived its right to compel arbitration of Plaintiff’s claim.

IV. CONCLUSION

Defendant Southern California Permanente Medical Group’s motion to compel arbitration is DENIED in its entirety as Defendant has waived its right to arbitrate this dispute. IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court